

THE STATE OF TEXAS
VS.
KELSIE ROCHELLE KOEPKE
3301 HORIZON SIDE WAY
KATY, TX 77493

02989501

SPN:
DOB: W F 1/5/1994
DATE PREPARED: 3/18/2019

D.A. LOG NUMBER: 2521000
CJIS TRACKING NO.:
BY: JL DA NO: 1902450
AGENCY: KSD
O/R NO: 190547
ARREST DATE: TO BE

FILED
Marilyn Burgess
District Clerk

MAR 18 2019

Harris County, Texas
Deputy

NCIC CODE: 1199 01
RELATED CASES: SAME DEF- 2 FEL
FELONY CHARGE: Improper Relationship with Student

CAUSE NO:
HARRIS COUNTY DISTRICT COURT NO:
FIRST SETTING DATE:

1625024
184

BAIL: TO BE SET AT MAGISTRATION
PRIOR CAUSE NO:
CHARGE SEQ NUM: 1

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **KELSIE ROCHELLE KOEPKE**, hereafter styled the Defendant, heretofore on or about **May 1, 2018**, did then and there unlawfully, while an employee of a public secondary school, and with the intent to arouse and gratify the sexual desire of Kelsie Rochelle Koepke, intentionally communicate in a sexually explicit manner with and distribute sexually explicit material to E.L., a person who was enrolled in the school in which the Defendant worked, by an electronic message service and system.

Probable Cause:

Affiant, Frank Muniz, is a peace officer who is employed by the Katy Independent School District Police Department, has reason to believe and does believe that Kelsie Koepke hereafter referred to as the Defendant, committed the offenses of Improper Relationship and Online Solicitation of a Minor on or about May 1, 2018 at a building located at 23111 Stockdick School Rd, in Harris County, Texas.

On Thursday, February 28, 2019, Affiant was assigned to investigate an Improper Relationship Between Educator and Student complaint initially filed by Mindy Dickerson, and the Victim's Grade-level/Assistant Principal, Bryan Hill, both known to your Affiant as credible and reliable people and administrators at Paetow High School, a public high school in Katy Independent School District. Affiant reviewed Katy ISD Police Offense Report #19-0547, prepared by J. Garcia, a credible and reliable person employed as a peace officer with Katy ISD PD. According to the report, Hill and Dickerson had interviewed a fifteen year old male hereafter called E.L. at the school located at 23111 Stockdick School Rd, Harris County, Texas, who stated that the defendant, Ms. K, had electronically sent him nude images of her breasts and two videos of herself masturbating. The principals stated that, per E.L., Defendant Suspect had communicated with him via a cell phone application called Snapchat and they told Officer Garcia that the Suspect's Snapchat username was "kelsie_koepke" and that her screen name was "Momma K." Officer Garcia stated that the Victim had voluntarily surrendered his cell phone to Principal Dickerson because the Victim admitted to Dickerson that he had saved the nude image and the masturbation videos to his cell phone's memory. According to the report, Officer Garcia spoke to the Victim's mother, L.L., identified by her Texas Driver's License, who signed a Voluntary Consent to Search Electronic Media form, which Officer Garcia attached to E.L.'s phone.

On Thursday, February 28, 2019, your Affiant checked the Victim's cell phone out of evidence storage in order to conduct a forensic analysis of the device (Affiant is recognized by "Cellebrite" as a Certified Operator and a Certified Physical Analyst on their equipment - "Cellebrite" is a digital intelligence and forensics company that manufactures hardware/software data extraction and analysis tools for examining cellular phones and mobile devices and the Katy ISD Police Department owns licenses for the Cellebrite "UFED 4PC" and "UFED Physical Analyzer" software programs - UFED stands for Universal Forensic Extraction Device). Upon successful completion of the forensic analysis, your Affiant reviewed the extraction with the "UFED Physical Analyzer" tool and this review uncovered the following items of evidence:

184/1425029

> A video file named: "IMG_5385.MP4" (9105643 bytes) <

This video is a screen-recording that was captured by the cell phone itself through the use of an unknown, third-party app designed to screen-record the device's own screen. The video begins as the Victim's screen enters a Snapchat conversation thread between him and another user named "Momma K". The video then shows the screen scrolling up to the top of that conversation thread and one can see an icon/thumbnail of a video that was sent from "Momma K" dated May 1, 2018. The icon/thumbnail depicts the fingers of a female's right hand, whose nails are painted with pink fingernail polish, on her vagina and the middle finger of that hand is already partially inserted into the vagina. The icon/thumbnail is then selected and the video opens up full screen. What plays next is a self-taken video of a woman masturbating with her right hand, specifically, her middle finger. The woman then removes her finger from her vagina and brings it up to her mouth and begins to suck on it. One can clearly see the woman's face in this video.

> A video file named: "IMG_5386.MOV" (7509638 bytes) <

This is the exact same video described above, but it is not the screen-recorded version of the masturbation video. Rather, it is just the video by itself. In other words, the video file that was attached to the aforementioned Snapchat conversation was downloaded and saved to the phone's memory by itself.

> A contact named: "Momma K" (sourced through Snapchat) <

This contact was #1813 in the list and it showed that "Momma K's" Snapchat Username was "kelsie_koepeke".

After viewing these files, Affiant then compared the woman depicted in the video to the Suspect's actual Texas Driver License image and determined that this woman was, indeed, Kelsie Koepke. Once the forensic extraction was completed, Affiant disconnected the phone, took the cell phone out of "Airplane Mode," and then used the device itself to physically navigate through its menus to the Snapchat application. Once Snapchat was opened, Affiant found the conversation thread between the Victim and another Snapchat user whose username was "kelsie_koepeke" and whose screen name was "Momma K". Upon opening that particular conversation thread, Affiant scrolled to an incoming message that was sent to the Victim on May 01, 2018, and the video that was attached to that message was the aforementioned video file, "IMG_5386.MOV", where the Suspect's face was visible as she masturbated.

On Monday, March 4, 2019, the Victim was forensically interviewed at the Children's Assessment Center, 2500 Bolsover Street, Houston, TX 77005, by Forensic Evaluator Justine Bruner, MA, LPC. During his interview, the Victim related that he met the Suspect during "Power Hour" at school in October of 2017 and it was during those meetings that she gave him her Snapchat account information. The Suspect then started to chat with the Victim via Snapchat and a couple of weeks before Homecoming, which was later that month, she instructed him not to save any of their chats. Then, on the actual night of the Homecoming event, she sent him the first set of nude photos and videos of herself. Complainant stated that the following day at school, the Suspect approached him and stated, "I can't believe I did that," and she apologized for her actions. However, a few days after that apologetic conversation Complainant stated that she started sending him more nude pictures and videos of herself.

On Thursday, March 07, 2019, your Affiant called the Suspect on her cell phone and obtained her account of what happened with the Victim via Snapchat. The Suspect stated that in the Spring of 2018 a "student" had added her on Snapchat and, at the time, she thought it was somebody from a dating site that she had already been sending "explicit" videos and pictures of herself to; she added that she had sent these videos/pictures to a few different people. The Suspect then ended up sending some explicit videos and pictures of herself to the "student" as well, but once she realized that it was not who she thought it was after she sent it, she still kept the "student" on her Snapchat wanting to "keep the peace" and she ended up sending him more images. Defendant admitted that she knew E.L. from Paetow High School because they had met in the Testing Center that she was in charge of during his lunch period. When asked her for her Snapchat username and screen/vanity name, the Suspect confirmed they were "kelsie_koepeke" and "Momma K," respectively. The Suspect was also asked what the "explicit" videos were about and she stated that one of these videos was of her masturbating and that her face was visible.

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on March 18, 2019



AFFIANT



ASSISTANT DISTRICT ATTORNEY
OF HARRIS COUNTY, TEXAS
Bar No.

COMPLAINT

COPY OF COMPLAINT/WARRANT DELIVERED TO

Officer's name: FRANK MUNIZ

Police agency: KATY ISD PD

date/time: 03/18/2019 @ 1745 hrs

Phone no: _____

Unofficial Copy Office of Marilyn Burges District Clerk